

Mukta Prasad Mishra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 September 2017 · WRIT - C No. - 38943 of 2017 · **Writ dismissed; bill-error correction relegated to Clause 6.5.**

HEADNOTE

An alleged error in an electricity bill is to be corrected by an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court dismissed the writ with that observation and did not examine the bill on merits.

FACTUAL SUMMARY

Mukta Prasad Mishra approached the Allahabad High Court in Writ-C No. 38943 of 2017 against the State of Uttar Pradesh and two others. The petition arose from an electricity bill issued by the Electricity Department. After hearing counsel for the parties, the Division Bench of Tarun Agarwala and Ashok Kumar, JJ. did not examine whether the bill was in fact erroneous, and disposed of the writ on the available statutory path for bill correction under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-error correction under Clause 6.5

HOLDING

If there is an error in an electricity bill issued by the Electricity Department, the consumer's remedy for correction of the bill is to move an application under Clause 6.5 of the Electricity Supply Code, 2005; a writ seeking that correction is dismissed with that observation. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

An alleged error in an electricity bill is to be corrected by an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court dismissed the writ with that observation and did not examine the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL IN FACT CONTAINED AN ERROR

The Court did not examine the bill on merits and relegated the petitioner to Clause 6.5. ¶ 1